

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co. Ltd.

v.

**Samsung Electronics Company, Ltd., Samsung SDS Global SCL Asia Pacific PTE LTD, and
Samsung Electronics Logitech Company, Limited**

JOINT MOTION FOR ENTRY OF PROTECTIVE ORDER

Respondent COSCO Shipping Lines Co., Ltd. and Complainant Samsung Electronics America, Inc., hereby move pursuant to Rule 201(i) of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.141(j), for entry of a protective order in the above-captioned proceeding. Issuance of a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive. A proposed protective order is attached for consideration by the Presiding Officer.

Dated: August 14, 2025

Respectfully submitted,

NIXON PEABODY LLP

/s/ Gordon L. Lang

Gordon L. Lang
Brian J. Whittaker
Martha A. Medina

799 9th Street, NW, Suite 500
Washington, DC 20001-5327
Telephone: 202-585-8000
GLang@nixonpeabody.com
BWhittaker@nixonpeabody.com
MMedina@nixonpeabody.com

HOLLAND AND KNIGHT LLP

/s/ Christopher R. Nolan

Christopher R. Nolan
Allison N. Skopec
787 7th Avenue, 31st Floor
New York, NY 10019
Telephone: (212) 513-3200
chris.nolan@hklaw.com
allison.skopec@hklaw.com

Gerald A. Morrissey III
Kristine O. Little
800 17th Street N.W., Suite 1100
Washington, D.C. 20006
Telephone: (202) 469-5497
Telephone: (202) 469-5549
gerald.morrissey@hklaw.com
kristine.little@hklaw.com

***Attorneys for Complainant Samsung
Electronics America, Inc.***

JEFFREY/FENNEMAN LAW + STRATEGY,
PLLC

Rebecca A. Fenneman
Eric C. Jeffrey
Kaya C. Massey
Nicholas L. Webb

700 12th Street, NW, Suite 700
Washington, DC 20005
Telephone: 202-904-2301
EJeffrey@JeffreyFenneman.com
RFenneman@JeffreyFenneman.com
Kmassey@JeffreyFenneman.com
NWebb@JeffreyFenneman.com

***Attorneys for Respondent
COSCO Shipping Lines Co., Ltd.***

PROTECTIVE ORDER

Upon stipulation of Complainant Samsung Electronics America, Inc. and Respondent COSCO Shipping Lines Co., Ltd. (“COSCO” or “Respondent”) and to expedite the exchange of certain confidential information,

IT IS HEREBY ORDERED THAT:

1. Except as otherwise ordered by the Presiding Officer (“ALJ”), this Order shall apply to all documents, answers to interrogatories, answers to requests for admissions, responses to requests for production of documents, responses to subpoenas, deposition transcripts and exhibits, expert materials, or other writings produced, given or filed in this action, and all information derived from any of the foregoing, that are designated as “Confidential” or “Attorneys Eyes Only” in accordance with the terms of this Order.

2. This Order shall apply to any party or non-party that produces or receives any information in this action, including any new party that is added, substituted, or otherwise brought into this action. Any material produced by a non-party may be reproduced to other parties in the action subject to the same confidentiality designations as originally produced.

3. A party (or producing non-party) may designate as “Confidential” any information which contains:

- a. trade secrets or confidential or proprietary research, development, marketing, commercial or financial information, including but not limited to, information regarding customers or clients, customer negotiations or operational or technical information, their financial status or activities;
- b. private or confidential personal information;
- c. any testimony, information, communications, presentations, documents or things, including without limitation, interrogatories, answers to interrogatories, deposition

transcripts and responses to requests for admission (“Discovery Material”), including any information copied or extracted therefrom which any Party reasonably believes is confidential or proprietary or contains confidential or proprietary information. If the producing Party designates Discovery Material as “CONFIDENTIAL” after copies thereof have been delivered to the receiving Party, the undesignated delivered copies thereafter shall be treated as if they were so designated;

- d. information that is not publicly known, that is not in the public domain, or that was previously disclosed to a Party in violation of a known obligation to maintain confidentiality or restrict disclosure; or
- e. information that a Party reasonably believes should otherwise be subject to confidential treatment.

(“Confidential Information”).

4. Confidential Information subject to this Order shall be used solely for the purposes of this litigation in accordance with the provisions of this Order, provided that nothing in this Order shall preclude a producing party from using its own Confidential Information. Except with the prior written consent of the producing party or non-party or with prior order of the ALJ, Confidential Information and any information derived therefrom may only be disclosed to:

- a. counsel for the parties, including in-house counsel, and their legal, paralegal and clerical staff and printing, copying, and electronic discovery vendors;
- b. the officers, directors, and employees of the receiving party to whom disclosure is reasonably necessary for this action;
- c. any officers before whom any deposition in this action is taken, including stenographic reporters, videographers, and any necessary secretarial, clerical, or other personnel of such officers engaged for the preparation of verbatim transcripts

and/or recordings in this proceeding;

- d. any person(s) who created or previously received the Confidential Information;
- e. The ALJ assigned to this action, the Federal Maritime Commission (the “Commission”), and employees of the Commission;
- f. experts and consultants and their respective personnel who are not an employee or business consultant of a party and are retained by a party for this action (“Retained Experts and Consultants”) and who have read and agreed in writing to abide by the terms of this Order in the form of Exhibit A hereto; and
- g. any other person the parties have agreed to in advance in writing.

5. A party (or producing non-party) may designate as Attorneys Eyes Only (“AEO”) any information or material whose disclosure to anyone other than outside counsel or Retained Experts and Consultants has a substantial probability of jeopardizing the producing party or non-party’s competitive business interests or the competitive or privacy interests of the producing party or non-party’s suppliers, service providers, customers, or clients, or of an individual party in this proceeding (“AEO Information”). AEO Information subject to this Order shall be used solely for the purposes of this litigation in accordance with the provisions of this Order, provided that nothing in this Order shall preclude a producing party from using its own AEO Information. Except with the prior written consent of the producing party or non-party or with prior order of the ALJ, AEO Information and any information derived therefrom may only be disclosed to:

- a. outside counsel and in-house counsel for the parties and their legal, paralegal and clerical staff and printing, copying, and electronic discovery vendors;
- b. any officers before whom any deposition in this action is taken, including stenographic reporters, videographers, and any necessary secretarial, clerical, or other personnel of such officers engaged for the preparation of verbatim transcripts and/or recordings in this proceeding;

- c. any person(s) who created or previously received the AEO Information;
- d. the ALJ assigned to this action, the Commission, and employees of the Commission;
- e. Retained Experts and Consultants who have read and agreed in writing to abide by the terms of this Order in the form of Exhibit A hereto; and
- f. any other person the parties have agreed to in advance in writing.

6. Information shall be designated by the producing party or non-party as Confidential Information or AEO Information in the following manner:

- a. in the case of information contained in a document, answer to interrogatory, answer to request for admission, response to request for production of documents, response to subpoena, expert report, or other writing, by stamping or otherwise marking, in such a manner as not to interfere with the legibility of the documents, the label “Confidential” or “Attorneys Eyes Only” or “AEO” on the face thereof at the time of production or copying, or by providing in writing the document number and the designation as “Confidential” or “Attorneys Eyes Only”;
- b. in the case of information contained or revealed in a deposition, whether in a question, answer or exhibit, by noting the designation on the record at the time of the deposition, or within ten business days after receipt of the deposition transcript.
- c. in the case of information exchanged prior to the entry of this Order, by procedures adopted by counsel for the parties, which procedures shall be consistent with those specified in subparts (a) – (b) of this paragraph 6.

7. For documents filed with the Commission, including, but not limited to, motions and legal memoranda in support, which include Confidential Information or AEO Information, the filing party shall file a confidential version of the document. Within five days thereafter, a) the filing party shall file a public version with all material that has been designated as Confidential Information or

AEO Information redacted; and b) the party seeking protection of any material from public disclosure shall file a motion for confidential treatment.

8. It is the responsibility of all persons receiving materials containing Confidential Information or AEO material that is properly marked to maintain such materials in a secure and appropriately identified manner. A designation of Confidential Information or AEO material shall be made in good faith.

9. It is the responsibility of counsel for each party to this action to ensure that those receiving Confidential Information or AEO material properly marked pursuant to this Order have knowledge of the terms of this Order and agree to be bound by them. Prior to any such disclosure, recipients who are approved pursuant to paragraphs 4(f), 4(g), 5(e), or 5(f) above must read and agree in writing to abide by the terms of this Order in the form of Exhibit A hereto. A copy of each recipient's written acknowledgment shall be kept by the party divulging the Confidential Information or AEO material.

10. When serving any discovery request or subpoena upon a non-party, it shall be the obligation of the party requesting such discovery from a non-party to include a copy of this Order when said discovery request or subpoena is served upon the non-party.

11. Any producing party or non-party may designate any discovery material containing Confidential Information or AEO Information that it inadvertently produced without the appropriate confidentiality designation by providing written notice to counsel for all parties identifying the particular discovery material that should have been designated as "Confidential" or "Attorneys Eyes Only." Such notice must be provided within a reasonable time following the producing party or non-party's discovery that it produced the discovery material subject to such notice without the appropriate confidentiality designation(s).

12. The designation of information as Confidential or AEO by the producing party or non-

party shall not waive or affect in any way the right of the receiving party to contest the designation of confidentiality. The designation of confidentiality may be contested as follows:

- a. Counsel for the parties shall confer in a good faith effort to resolve any differences.
- b. Failing agreement of the parties, the party objecting to the designation of information as Confidential or AEO may file an appropriate motion with the ALJ and shall (1) certify that s/he has sought in good faith to confer with opposing counsel and has been unable to resolve the dispute by agreement; and (2) identify by specific category or document number the information for which relief is sought.
- c. Within fifteen business days of receiving such a motion, the opposing party or non-party shall respond to the motion by showing with particularity with respect to each challenged item of Confidential or AEO information, the reasons why such information has been properly designated as Confidential or AEO.
- d. The burden of establishing that information is Confidential or AEO shall be on the party or non-party designating it as such.
- e. If a response is timely made as provided in subparagraph (c) above, until the motion is ruled upon by the ALJ, the designation of confidentiality shall remain in full force and effect and the information shall continue to be accorded the treatment required by this Order.

13. The production or disclosure of Confidential Information or AEO Information shall not constitute a waiver of any sort, including of: (a) any producing party or non-party's right to object to the production or disclosure of other information in this proceeding or in any other proceeding; (b) any objections to discovery or admissibility that any producing party or non-party or receiving party may assert; or (c) the parties' ability to use their own documents, communications, information, or testimony.

14. Nothing herein shall be deemed to waive any attorney-client privilege, attorney

work product protection, or similar protection recognized by applicable law, or be deemed an admission as to the admissibility in evidence of any facts, documents, communications, information, or testimony revealed in the course of discovery in this proceeding. Pursuant to Fed. R. Evid. 502, the production of privileged or work-product protected documents, electronically stored information (“ESI”) or other information, whether inadvertent or otherwise, is not a waiver of the privilege or protection from discovery in this case or in any other federal or state proceeding. This Order shall be interpreted to provide the maximum protection allowed by Federal Rule of Evidence 502(d).

15. If a Party produces, inadvertently or otherwise, Discovery Material, including without limitation, electronically stored information (ESI) that is privileged (such as attorney-client privilege or work product), they must send to each receiving party a written request for return of the produced or disclosed material within a reasonably prompt period of time after recognizing that the privileged or protected information has been produced or disclosed. Within five (5) business days of receiving such a request, the receiving party shall return any such produced privileged, work product, or similarly protected material upon notification or discovery of the production and shall not use the privileged, work product, or other similarly protected information contained therein for any purpose other than to challenge whether such material is protected by the attorney-client privilege, the attorney work product doctrine, or other similar protection, in which case the discovery material being challenged shall be treated as if designated AEO until such time as the ALJ rules on the privilege or other protection from discovery. The Party that produced this information should keep unaltered copies of the returned materials. Returning the documents under this protocol does not affect either Party’s rights regarding the waiver of privilege. If there is a dispute about whether the returned ESI is privileged, the Parties should first meet and confer to try and resolve it before involving the ALJ. The Receiving Party shall destroy all copies or summaries

of, or notes relating to, any produced discovery material for which a designation of privilege or protection is not challenged, or when a privilege or other protected designation is challenged but the ALJ rules that the discovery material at issue is privileged or otherwise protected from discovery. Nothing contained within this paragraph is intended to or shall serve to limit a party's right to conduct a review of documents, ESI, or information (including metadata) for relevance, responsiveness, confidentiality, and/or segregation of privileged and/or protected information before production. The provisions of Federal Rule of Evidence 502(b) do not apply.

16. If Confidential Information or AEO Information in the possession of the receiving party is subpoenaed by any court, administrative or legislative body, or any other person purporting to have authority to subpoena such information, the party to whom the subpoena is directed shall give written notice of the subpoena (including the delivery of a copy thereof) to counsel for the party or non-party that produced the information or documents promptly after the receipt of the subpoena. If the subpoena purports to require production of such Confidential or AEO information on less than 7 days' notice, the party to whom the subpoena is directed shall give immediate email notice of the receipt of such subpoena, and forthwith deliver a copy thereof, to the attorney for the producing party or non-party.

17. A Party which learns that, by inadvertence or otherwise, it has disclosed Confidential Information in breach of this Order, shall promptly: (a) notify the Producing Party of such Confidential Information of the unauthorized disclosures, (b) use its best efforts to retrieve all copies of the disclosed Confidential Information, (c) inform those to whom unauthorized disclosures were made of all of the terms of this Confidentiality Stipulation and Proposed Protective Order, and (d) request such person or persons to execute the Certification form annexed at Appendix A. Thereafter, that Party shall take necessary steps to prevent further disclosures in breach of any of the provisions of this Order.

18. Within thirty days after the conclusion of this proceeding, including any appellate proceedings, all Confidential and AEO information (including copies and documents containing information derived therefrom) shall be destroyed or returned to the producing party or non-party, at the election of the receiving party, provided that Counsel are entitled to retain an archival copy of all pleadings, motion papers, trial, deposition, and hearing transcripts, legal memoranda, correspondence, deposition and trial exhibits, expert reports, attorney work product, and consultant and expert work product, even if such materials contain Protected Material. Furthermore, Counsel shall not be required to return or destroy information that is stored on backup storage media made in accordance with regular data backup procedures for disaster recovery purposes.

19. The provisions of this Order shall survive and remain in full force and effect after the conclusion of this proceeding, including any appellate proceedings.

SO ORDERED,

Dated: August __, 2025

EXHIBIT A

AGREEMENT TO ABIDE BY THE TERMS OF PROTECTIVE ORDER

I acknowledge that I have read the foregoing Protective Order and understand its contents, and I hereby agree to abide by its terms and conditions.

NAME: _____

DATE: _____